

Private Nuisance

Week 15

Lecture 29 (Part B)
(Part A)
Lecture 30

Week 16

Lecture 31

Dr Sarah Gilmartin

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Drop-in Hours: [make an appointment](#)

Private Nuisance - A definition

‘Private nuisance is defined as any substantial and unreasonable interference with the claimant’s land, or with his rights to peaceful enjoyment of that land and any right that exists in connection with it. It need not result from “direct” or “intentional” interference; it is sufficient that the defendant have “adopted or continued” a state of affairs that constitutes an unreasonable interference.’

Zoe Adams, Markesinis and Deakin’s Tort Law (8th edn, OUP 2019)

‘The function of the tort, in the context of private nuisance, is to control the activities of the owner or occupier of property within the boundaries of his own land which may harm the interests of the owner or occupier of other land.’

Hunter v Canary Wharf [1997] A.C. 655

Elements of the Tort

- 1) Unlawful and indirect interference by D with C's use and enjoyment of land (amenity damage/property damage)
- 2) D is an unreasonable user (is the use common and ordinary?)
- 3) Causation/Remoteness
- 4) Defences
- 5) Remedies



Types of Private Nuisance

Indirect interference examples (not limited to):

- Blocking natural light
- Insect attraction (failure to abate)
- Noxious fumes
- Interference with leisure activities
- Offensive smells or noise (animals/industrial)
- Not all environmental 'nuisances' are actionable

Limits:

- Injurious activity for community benefit (still a protection of private rights in land; eg motor raceway that benefits community)
- Statutory frameworks regarding environmental damage

Distinguishing Private Nuisance from the other Land-Based Torts

Private nuisance gives rise to an action in tort, but is not a criminal offence

An interest in land is required to take an action

Private nuisance is DISTINCT from public nuisance

Not actionable per se (as trespass to land is). There has to be a type of legally recognised damage.

Additional Reading



Read:



Horsey & Rackley,
Private Nuisance, Chap.
18.3.1 – 18.3.3



Cases on Reading List

Who is the Claimant?

- C must have standing
- Standing = exclusive possessory or proprietary interest in the land
- *Hunter v Canary Wharf* [1997] A.C. 655



- Rule has been criticised
 - Is it fair?
 - Issues for: children, non-named spouses (*Malone v Laskey* [1907] 2 KB 141), lodgers, *au pairs*, caregivers..

N.B. *Human Rights Act 1998* incorporation of European Convention on Human Rights Article 8 - 'everyone has the right to respect for his private and family life [and] his home.'

- ❑ **Read:** H&R, Ch 18, 18.4.3 for discussion of private nuisance and its interaction with the HRA 1998 and be aware of some of the human rights and environmental arguments: **BUT note that**

Who is the Defendant?

Creator of the nuisance

- Must be created through use of land
- Even a continued campaign of harassment is not a private nuisance (*Hussain v Lancaster CC* [1999] 4 All ER 125);
Consider: how else could these acts result in tortious liability?

Occupier of the land (and permitting nuisance to occur)

- Lawfully on premises (vicarious liability issues; any negligent special danger)
- Trespasser or natural disaster (with actual or constructive knowledge and failure to take reasonably prompt and efficient steps to abate)

Owner/landlord

- If authorised
- Knew or should have known before letting

Unlawful and indirect interference

- In order to bring an action in nuisance, the recognised right/interest in land must be the subject of an unlawful interference
- Example interferences: fumes, smells, vibrations, etc.
- Unlawful – Is D an unreasonable user?
 - ❖ Locality (may be relevant depending on the type of harm)
 - ❖ Sensitivity of the Claimant
 - ❖ Malice
 - ❖ Duration/Extent of the interference
 - ❖ Public interest?

Unreasonable Interference

Locality (1/2)



Sturges v Bridgman (1879) 11 Ch D 852

“whether anything is a nuisance or not is a question to be determined, not merely by an abstract consideration of the thing itself, but in reference to its circumstances; *what would be a nuisance in Belgrave Square would not necessarily be so in Bermondsey*; and where a locality is devoted to a particular trade or manufacture carried on by the traders or manufacturers in a particular and established manner not constituting a public nuisance, Judges and juries would be justified in finding, and may be trusted to find, that the trade or manufacture so carried on in that locality is not a private or actionable wrong.”

Key takeaways: per Thesiger LJ at 865

- ❖ Location matters to amenity damage; and



Unreasonable Interference?

Locality (2/2)

a) What if the damage complained of is physical damage to property rather than amenity damage?

St Helen's Smelting Co v Tipping [1865] 11 HLC 642

b) What if the nature of the neighbourhood changes over time?

Gillingham v Medway [1993] QB 343

Coventry v Lawrence [2014] UKSC 13





Unreasonable Interference?

Sensitivity of Claimant/Foreseeability

Is the Claimant abnormally sensitive?

- *Robinson v Kilvert* (1889) 41 Ch D 88
- *Network Rail Infrastructure v Morris* [2004] EWCA Civ 172

Unreasonable Interference? Malice

Christie v Davey
[1893] 1 Ch. 316



Unreasonable Interference?

Time/Duration



Halsey v Esso
[1961] 1 W.L.R. 683

N.B. A good case to look at as well to see the interaction of the land-based torts: private nuisance, public nuisance, and the rule in *Rylands v Fletcher*



Unreasonable Interference? Recent Developments (1/2)

Network Rail Infrastructure v Williams [2018] EWCA Civ 1514

- NRI had knowledge of Japanese Knotweed (JK) on their property
- Risk of encroachment interfered with C's use and enjoyment of property
- COA rejected pure financial loss/diminution in value (reduction in property price due to presence of JK **BUT** *"..the diminution in value of the properties, combined with the fact that any owner would have to live with the concerns and adverse consequences of a devalued property, is properly characterised as an aspect of the amenity of the land protected by the tort of private nuisance."*)

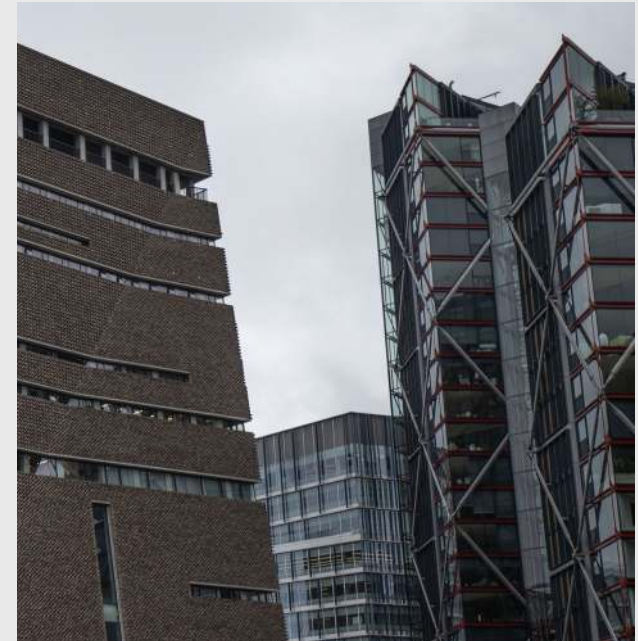


Unreasonable Interference? Recent Developments (2/2)

Fearn v Board of Trustees of the Tate Gallery [2023] UKSC 4

- D art gallery opened a viewing platform
- The platform overlooked C's residence opposite
- 500,000-600,000 visitors per year
- The stages:
 - **High court:** Dismissed claim - 'Common and ordinary use' of building.
 - **Court of Appeal:** Dismissed appeal. 'Mere overlooking' not a nuisance, fails substantial threshold.
 - **UKSC:** Allowed appeal. 'Substantial' or 'intense' interference with owners' use and enjoyment.
 - Remitted to lower court for remedy

[The Tate Modern Has Reopened Its Viewing Gallery as Level 10](#)



Fearn v Board of Trustees of the Tate Gallery [2023] UKSC 4 **and its interpretation so far...**

N.B. No specific cases of visual intrusion since

- ***MBR Acres Ltd v Curtin* [2025] EWHC 331**
 - **Nuisance:** drone use
 - **Reference to Fearn:** [72] Griffiths J's observations [in *Lord Bernstein* [1978]] about whether repeated photographing of a person's property, amounting effectively to surveillance, might ground a cause of action were very much rooted in the notion that such behaviour might be found to be an actionable nuisance (cf. *Fearn...*).
- ***Cooper v Ludgate House Limited* [2025] EWHC 1724 (Ch)**
 - **Nuisance:** interference with right to light
 - **References to Fearn**
 - [38]: An owner of property is expected to put up with a certain amount of disturbance and not sue for a small, temporary or inconsequential infringement...
 - [43]: The interest protected by the law of nuisance is the utility of land, and whether there is or is no substantial interference is to be assessed objectively on that basis [*Fearn*, per Lord Legatt [22]-[23]]

Fearn v Board of Trustees of the Tate Gallery [2023] UKSC 4 and its interpretation so far...

- *Bakhaty v Hampshire CC* [2025] EWHC 1175 (KB)

- **Nuisance:** noise from adjacent school play area and footballs in claimant's garden
- **Reference to *Fearn*:**

[12] ...I derive the following principles from the judgments in that case:

- i) The right protected by the law of nuisance is the utility and amenity value of the claimant's land, not the personal comfort of its occupiers.
- ii) The overriding principle behind the law is the need to strike a balance between the conflicting interests of neighbouring landowners.
- iii) The touchstone is not some overriding and unprincipled test of reasonableness. Instead, the question of whether any particular activity is a nuisance has to be approached in a structured manner as established by the authorities.
- iv) The first question must always be whether the activities complained of amount to a substantial interference with ordinary user of the claimant's land. This is an objective test to be judged by the standards

v) If the interference is substantial, the next question is whether the user complained of is part of the ordinary or normal user of the defendant's land. This has to be considered in the context of the character of the neighbourhood or locality. The parties' respective properties do not in themselves or together constitute a 'locality'. A neighbourhood or locality encompasses a wider area and its actual extent depends on the context.

vi) Even if the defendant's use of their land is an ordinary one, it must still be 'conveniently done'. This requires 'proper consideration for the interests of neighbouring occupiers' (*Fearn* @ [27]). It is in this respect alone that the concept of reasonableness arises, having regard to the nature, effect, duration and frequency of the activity complained of and the need for give and take.

vii) The public interest cannot justify the commission of a private law nuisance, although it may be of some limited relevance when considering the grant of a

Defence S

Read: H&R Ch 18,
18.3.4



Locality –
not a “true”
defence but
see

*Coventry v
Lawrence*



Coming to
the nuisance
is not a
defence



Nuisance
result of
statutory
authority



Natural
Disaster/Act
of God



Independent
contractors



Prescription



Contributory
negligence
and consent

Remedies

- ❖ Abatement
- ❖ Damages
- ❖ Injunction
- ❖ Damages in lieu of an injunction



Coventry v Lawrence [2014] UKSC 13

Dennis v Ministry of Defence [2003] EWHC 793 (QB)

Skeleton outline/conclusion

Prerequisites:

- C capacity to sue
- D capacity to be sued
- Threshold of 'inconvenience' (also 'intensity' or substantial interference)

Elements:

- 1) Interference by D with C's use and enjoyment of land
- 2) D: unreasonable user (is the use common and ordinary?)
- 3) Causation/Remoteness
- 4) Defences
- 5) Remedies

Private Nuisance (End)

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A)

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Lecture 31 (Part

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